

	2024-01395517	liability, brought by Defendants Betty Moore, individually and as Trustee of the Betty Hunter Moore Trust, and Betty Hunter Moore Trust, dba Long Beach Investments, erroneously sued and served herein as Long Beach Investments, LLC, a California Limited Liability Company, is GRANTED as to Plaintiffs' breach of implied warranty claim and breach of express warranty claim (all found within Count Three—Breach of Warranty of Plaintiffs' third cause of action), but is otherwise DENIED. Plaintiffs Diana Gregory and Danielle Vasquez shall have 10 days leave to file a first amended complaint. <u>Count One—Strict Liability.</u> Defendants contend that Plaintiffs have not pled sufficient facts to support a cause of action for strict products liability against Defendants as a landlord, citing <i>Peterson v. Superior Court</i> (1995) 10 Cal.4th 1185. But here, Plaintiffs checked the relevant box in paragraph Prod. L-4 on Judicial Council form PLD-PI-001(5) to allege that Defendants "manufactured or assembled the product." This is not a "contradictory" allegation by Plaintiffs as Defendants could in theory be both a landlord and a manufacturer. On an MJOP, the court must accept as true the factual allegations of the complaint "however odd or improbable" they may be. (<i>Thomas v. Regents of University of Cal.</i> (2023) 97 Cal.App.5th 587, 611.) An MJOP "must be denied where there are material factual issues that require evidentiary resolution." (<i>Southern Cal. Edison Co. v. City of Victorville</i> (2013) 217 Cal.App.4th 218, 227.) <u>Count Two—Negligence.</u> Defendants' briefs do not contend that this count of the third cause of action fails. <u>Count Three—Breach of Warranty.</u> Although Judicial Council form PLD-PL-001(5) combines into a single "[c]ount" claims for breach of implied warranty and express warranty, these are separate claims governed by different sections of the Commercial Code (i.e., sections 2313, 2314, and 2315) with different elements that must be alleged and proved. Accordingly, the court treats Plaintiffs' claims for breach of implied and express warranties as separate causes of action for purposes of deciding this motion. (<i>Martinez v. City of Clovis</i> (2023) 90 Cal.App.5th 193, 262 [courts "are not limited by the labels and structure used in the pleading"].)
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Implied Warranty Claim

There are two types of implied warranties: merchantability and fitness. Both require that Plaintiffs be purchasers of the product. (See CACI 1231, 1232; see also Comm. Code §§ 2314, 2315.)

Plaintiffs specifically did not check the box on form PLD-PI-001(5) to allege that they are “purchasers of the product” in paragraph Prod. L-3. Thus, Plaintiffs have not alleged facts sufficient to support either type of implied warranty claim.

Express Warranty Claim

The elements for breach of an express warranty are (1) defendant made a statement of fact or promise to plaintiff about a product, or gave plaintiff a description of the product, or gave plaintiff a sample or model of the product; (2) the product did not perform as stated or promised, or did not meet the quality of the description, sample, or model; (3) plaintiff took reasonable steps to notify defendant within a reasonable time that the product was not as represented; (4) defendant failed to repair the product as required by the warranty; (5) plaintiff was harmed; and (6) the failure of the product to be as represented was a substantial factor in causing plaintiff’s harm. (CACI 1230; see also Comm. Code, § 2313.)

“In order to plead a cause of action for breach of express warranty, one must allege the exact terms of the warranty” (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 142.) Here, Plaintiffs did not allege “the exact terms of the warranty.”

Although Plaintiffs used Judicial Council form PLD-PI-001(5) to allege this cause of action, Judicial Council form complaints are not “invulnerable” to a demurrer or motion for judgment on the pleadings. (See *People ex rel. Dept. of Transportation v. Superior Court* (1992) 5 Cal.App.4th 1480, 1482.) “In some cases, merely checking a box on a Judicial Council form complaint will be sufficient. In other cases, such as this one, where specific allegations need be alleged, the form complaint is like a partially completed painting. It is up to the pleader to add the details that complete the picture. The form complaint here, standing alone, is no more immune to demurrer than any other complaint that fails to meet essential

		pleading requirements to state a cause of action.” (<i>Id.</i> at p. 1486.) Defendants shall give notice.
54.	Geng v. Che 2020-01161695	Defendant Shandong Oriental Ocean Group Co. Ltd.’s demurrer to the Third Amended Complaint [TAC] is SUSTAINED in part, with leave to amend, and OVERRULED in part. (Code Civ. Proc., § 340.10, subds. (d), (e), (f).) First, the TAC is not so uncertain that defendant cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (Code Civ. Proc., § 430.10, subd. (f); <i>Khoury v. Maly's of Calif., Inc.</i> (1993) 14 Cal.App.4th 612, 616.) Also, moving party has not requested judicial notice of any prior pleadings in connection with its “sham” pleading argument. (<i>Owens v. Kings Supermarket</i> (1988) 198 Cal.App.3d 379, 384.) Even if it had, the TAC is not a “sham” as defendant does not assert a challenge to Geng’s claim. <u>1st cause of action: breach of contract.</u> The demurrer to this cause of action is SUSTAINED, with leave to amend, as to plaintiff David Hsiu, and OVERRULED as to plaintiff Xuan Geng. This cause of action fails to state sufficient facts as to plaintiff David Hsiu. (Code Civ. Proc., § 340.10, subd. (e); see also <i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821 [elements].) While the body of the TAC alleges he was a party to the written loan agreement, this is contradicted by the loan agreement attached as Ex. 1 to the TAC, showing that plaintiff Xuan Geng and moving party are the only parties to the written contract. (<i>Holland v. Morse Diesel Intern., Inc.</i> (2001) 86 Cal.App.4th 1443, 1447 [“If facts appearing in the exhibits contradict those alleged, the facts in the exhibits take precedence”].) The TAC does not allege any other facts showing how David Hsiu is a party to the agreement, or overcoming the contrary facts shown in Ex. 1 to the TAC. The remainder of the demurrer to this cause of action is OVERRULED. No defect or misjoinder of parties is apparent from the face of the TAC. (Code Civ. Proc., § 430.10, subd. (d).) While this cause of action currently fails to state sufficient facts as to plaintiff